Unit – III: Copy Rights

- Copyrights – Fundamental of copyright law
- Requirements of copyrightability
- Originality of the material
- Fixation of the material
- Authorship works, exclusion from copyright protection
- Rights
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    - Right of reproduction of copyrighted work
    - Right to do derivative works
    - Right to distribute copies of copyrighted work
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- Copy right – Ownership issues: Joint works, Works made for hire, specially commissioned works
- Copyright registration – Notice of Copyright
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- Remedies for infringement in copyrights
- New developments in copyright law
- International copyright law

Introduction:

In ancient days creative persons like artists, musicians and writers made, composed or wrote their works for fame and recognition rather than to earn a living, thus, the question of copyright never arose. The importance of copyright was recognized only after the invention of printing press which enabled the reproduction of books in large quantity practicable.

Copyright –Definition:

Copyright is a right of use given by the law to the creator of literary, dramatic, musical, artistic work, software etc for a limited period of time

In India all the law related to copyright is regulated by the copyright Act 1957. Its latest amendment was brought in 2012

A copyright is an exclusionary right. It conveys to its owner the right to prevent others from copying, selling, performing, displaying, or making derivative versions of a work of authorship.

Exclusive copyright rights

The entire bundle of rights that a copyright owner is exclusively entitled to exercise under the copyright laws. These rights consist of:

- the right to reproduce (copy) the work
- the right to prepare derivative works

- the right to distribute copies of the work
- the right to perform the work, and
- the right to display the work.

COPYRIGHT ACT, 1957: Copyright Act refers to laws that regulate the use of the work of a creator, such as an artist or author.

This includes copying, distributing, altering and displaying creative, literary and other types of work. Unless otherwise stated in a contract, the author or creator of a work retains the copyright.

Copyright does not ordinarily protect titles by themselves or names, short word combinations, slogans, short phrases, methods, plots or factual information.

Need for Copyright:

- It gives you the exclusive right to reproduce or copy the work or change its form.
- Registration informs the world that you own the work
- If you succeed in an infringement suit, you are entitled to money damages.

Indian perspective on Copyright Protection:

The Copyright Act, 1957 provides copyright protection in India. It confers copyright protection in the following two forms:

a) Economic rights of the author
b) Moral Rights of the author
    i. Right of Paternity
    ii. Right of Integrity

TERM OF COPYRIGHT: It varies according to the nature of work - 60 years, in India.

- Literary, dramatic, musical or artistic work (other than a photograph), when published during the lifetime of the author, copyright subsists during the lifetime of the author, plus 60 years.
- In the case of photographs, cinematograph films and sounds recordings; the term is 60 years from the date of publication.
- When the first owner of copyright is the government or a public undertaking, the term of copyright is 60 years from the date of publication.

The Fundamentals of Copyright

Copyright is a right given by the law to creators of literary, dramatic, musical and artistic works and producers of cinematograph films and sound recordings. In fact, it is a bundle of rights including, inter alia, rights of reproduction, communication to the public, adaptation

and translation of the work. It means the sole right to produce or reproduce the work or any substantial part thereof in any material form whatsoever (Kartar Singh Giani v. Ladha Singh & Others AIR 1934 Lah 777). Section 14 of the Act defines the term Copyright as to mean the

exclusive right to do or authorise the doing of the following acts in respect of a work or any substantial part thereof, namely

In the case of literary, dramatic or musical work (except computer programme):

a. reproducing the work in any material form which includes storing of it in any medium by electronic means;
b. issuing copies of the work to the public which are not already in circulation;
c. performing the work in public or communicating it to the public;
d. making any cinematograph film or sound recording in respect of the work; making any translation or adaptation of the work. Further any of the above-mentioned acts in relation to work can be done in the case of translation or adaptation of the work.

In the case of a computer programme:

a. to do any of the acts specified in respect of a literary, dramatic or musical work; and
b. to sell or give on commercial rental or offer for sale or for commercial rental any copy of the computer programme. However, such commercial rental does not apply in respect of computer programmes where the programme itself is not the essential object of the rental.

In the case of an artistic work:

a. reproducing the work in any material form including depiction in three dimensions of a two-dimensional work or in two dimensions of a three-dimensional work;
b. communicating the work to the public;
c. issuing copies of work to the public which are not already in existence;
d. including work in any cinematograph film; making adaptation of the work, and to do any of the above acts in relation to an adaptation of the work.

In the case of cinematograph film and sound recording:

a. making a copy of the film including a photograph of any image or making any other sound recording embodying it;
b. selling or giving on hire or offer for sale or hire any copy of the film/sound recording even if such copy has been sold or given on hire on earlier occasions; and
c. communicating the film/sound recording to the public.

In the case of a sound recording:

a. To make any other sound recording embodying it •
b. To sell or give on hire, or offer for sale or hire, any copy of the sound recording
c. To communicate the sound recording to the public

Originality Of Material

There are three basic requirements for copyright ability:

- A work must be original
- A work must be fixed in a tangible form of expression; and
- A work must be a work of authorship

To be eligible for copyright protection, material must be original, meaning that it must have been independently created and must possess a modicum of creativity. The requirement of originality should not be confused with novelty, worthiness, or aesthetic appeal.

The requirement is rather that the material must be an independent product of the author and not merely some copy or minimal variation of an existing work. A work can be original even if it is strikingly similar or identical to that of another. The Copyright Act only requires originality, meaning independent creation by the author.

Originality does not signify novelty; a work may be original even though it closely resembles other works so long as the similarity is fortuitous, not the result of copying.

To illustrate, assume that two poets, each ignorant of the other, compose identical poems. Neither work is novel, yet both are original, and, hence, copyrightable. “Originality” thus does not mean “first”; it merely means “independently created” rather than copied from other works.

Fixation of Material:

The Copyright Act protects works of authorship that are “fixed in any tangible medium of expression.” A work is “fixed” when it is embodied in a copy or phonorecord and is sufficiently permanent or stable to permit it to be perceived, reproduced, or communicated for a period of more than transitory duration.

There are thus two categories of tangible expression in which works can be fixed: “copies” and “phonorecords.”

- A copy is a material object from which a work can be perceived, reproduced, or communicated, either directly by human perception or with the help of a machine.
- A phonorecord is a material object in which sounds are fixed and from which the sounds can be perceived, reproduced, or communicated either directly by human perception or with the help of a machine.

Works of Authorship: (17 U.S.C§102)

- The copyright act provides that copyright protection subsists [support oneself]in original works of authorship fixed in any tangible medium of expression, now known or Here after developed,from which they can be perceived,reproduced or otherwise communicated either directly or with the aid of a machine.
- 17 U.S.C. § 102. Section 102 then lists eight categories of protectable works. The list is preceded by the phrase that works of authorship “include” those categories,

demonstrating that the listed categories are not the only types of works that can be protected, but are illustrative only.

The eight enumerated categories are as follows:

1. Literary works,
2. Musical works (including accompanying words)
3. Dramatic works (including accompanying music)
4. Pantomimes and choreographic works
5. Pictorial, graphic, and sculptural works
6. Motion pictures and other audiovisual works
7. Sound recordings
8. Architectural works

Rights of Reproduction:

The most fundamental of the rights granted to copyright owners is the right to reproduce the work

- AviolationofthecopyrightactoccurswhetherornottheviolatorprofitsbythereproductionOnly the owner has the right to reproduce the work
- Secretly taping a concert, taking pictures at a performance, or recording all violate the owner's right to reproduce
- The suggestion of congress, in 1978 a group of authors, publishers and users established a not-for-profit entity called Copyright Clearance Center[CCC]
- CCC grants licenses to academic, government and corporate users to copy and distribute the works
- It collects royalty fees, which are distributed to the authors
- Companies that photocopy articles from journals and magazines often enter into licensing arrangements with the CCC so they can make copies.

Rights to prepare Derivative works:

- Section 106 of the copyright Act provides that the owner of a copyright has the exclusive right to prepare derivative works based upon the copyrighted work
- This right I often referred to as the right to adapt the original work
- Definition:
  "A derivative work is broadly defined as a work based upon one or more preexisting works, such as a translation, dramatization, fictionalized motion pictures version, abridgment condensation or any other from in which a work maybe recast, transformed, or adapted.
- A work consisting of editorial revisions, annotations, elaborations, or other modifications is also a derivative work

Rights of distribution and the first sale doctrine:

- Section 106 (3) of the copyright act provides that the owner of a copyright has the exclusive right to distribute copies or phonorecords of the work to the public by sale or other transfer of ownership
- A violation of the distribution right can arise solely from the act of distribution itself
- The distributor did not make an unlawful copy or the copy being distributed was unauthorized
- Thus, blockbuster videos to can be liable for violating an owner's right to distribute
- Once the author has parted with ownership of copyrighted material, the owner
- The new owner the right to lend the book or movie to a friend, resell the work at a garage sale, or even destroy it.
- The first sale doctrine does not apply to or limit the author's exclusive rights to prepare derivative works or rights of public performance and without permission of authorship the goods are not permitted to imported into the U.S.

Rights to perform the work publicly

- Section 106 [5] of the Copyright Act provided that in the case of all copyrighted works other than sound recording & works of architecture, the copyright owner has the exclusive right to display the work publicly.
- A display is "public" under these circumstances in which a performance is "public". New material represents original work of authorship namely if it occurs at a place open to the public (or) at a place where a substantial number of persons outside of the normal circle of a family

Copyright Ownership Issues [17U.S.C. §201(a)]:

- Copyright in a work protected under the copyright activists [provide with power and authority] in the author or authors of the work
- Issues about ownership arise when more than one person creates a work
- Unless copyright has been explicitly conveyed with those physical articles, the original authors generally retain all other rights associated with the works.

Joint Works [intent to create a unitary whole]

- A joint work is a work prepared by two or more authors with the intention that their contributions be merged into inseparable or interdependent parts of a unitary whole.
- One copyright exists in the created works
- Joint authors are those who "mastermind" or "super mind" the creative effort.

Ownership Rights in Joint Works

- If individual are authors of a joint work, each owns an equal undivided interest in the copyright as a tenant in common, [each has the right to use the work, prepare derivative works, display it without seeking the other coauthor's permission].
- If profits arise out of such use, an accounting must be made so, that each author shares in the benefits or proceeds.
- The death of a coauthor, his or her rights pass to heirs who then own the rights in common with the other coauthor.

Ownership of a physical object is separate and distinct from ownership of the copyright embodied in the material object

Ownership in Derivative or Collective Works

- The author of the original book has rights only to his or her work and cannot reproduce or perform the derivative work without permission.
- If a work such as a book is created by one person who intends it to be complete at the time and illustrations are later added to it by another, the work cannot be a joint work because there was no intention of the parties to create a unitary whole at the time of their creation.
- The author of the derivative work cannot create further works based on the original book without permission and cannot reproduce the original work without permission.
- Multipleownershiprightsmayalsoariseifseparatelycopyrightableworksarecompiled into a collection.

For Example: If essays written by Jerry Seinfeld, Ellen DeGeneres, and Paul Reiser are collected into a humour anthology by Bill Jones (with permission of the original authors), the original authors retain their exclusive rights (such as rights to reproduce, distribute, and perform) in their respective essays. No joint work is created because there was no intent at the time the separate essays were created to merge them into a unitary whole. No derivative work is created because the original works have not been transformed in any way and nothing new has been added to them. The anthology by the compiler, Bill Jones, is a collective work and pursuant to section 201(c) of the act, Jones acquires only the right to reproduce and distribute the contributions as part of the particular collective work or any revision of the collective work .

Works Made for Hire

- The general rule is that the person who creates a work is the author of that work and the owner of the copyright therein, there is an exception to that principle: the copyright law defines a category of works called works made for hire.
- If a work is “made for hire”, the author is considered to be the employer or commissioningpartyandnottheemployeeortheactualpersonwhocreatedthework
- The employer or commissioning party may be a company or an individual.
- There are two types of works that are classified as works made for hire; works prepared by an employer within the scope of employment and certain categories of specially ordered or commissioned works.

Copyright Registration

- A work is “created” when it is fixed in a copy or phonorecord for the first time.
- Although not required to provide copyright protection for a work, registration of copyright with the Copyright Office in expensive, easy and provides several advantages, chiefly, that registration is a condition precedent for bringing an infringement suit for works of US origin.
- To register a work, the applicant must sent the following three elements to the Copyright Office: a properly completed application form, a filing fee, and a deposit of the work being registered.
- Registration may be made at any time within the life of the copyright

The Application for Copyright Registration

- The following persons are entitled to submit an application for registration of copyright:
- The author (either the person who actually created the work or, if the work is one made for hire, the employer or commissioning party)
- The copyright claimant (either the author or a person or organization that has obtained ownership of all of the rights under the copyright originally belonging to the author, such as a transferee)
- The owner of exclusive right, such as the transferee of any of the exclusive rights of copyright ownership (for example, one who prepares a movie based on an earlier book may file an application for the newly created derivative work, the movie); and
- The duly authorized agent of the author, claimant, or owner of exclusive rights (such as an attorney, trustee, or any one authorized to act on behalf of such parties)

Application Forms

- The Copyright Office provides forms for application for copyright registration.
- Each form is one 8½ by 11" (inches) sheet, printed front and back.
- An applicant may use photocopies of forms
- The Copyright Office receives more than 6,00,000 applications each year, each application must use a similar format to ease the burden of examination.
- The type of form used is dictated by the type of work that is the subject of copyright. For example: One form is used for literary works, while another is used for sound recording. Following are the forms used for copyright application.
- Form TX (Literary works, essays, poetry, textbooks, reference works, catalogues, advertising copy, compilations of information, and computer programs)
- Form PA (Pantomimes, choreographic works, operas, motion pictures and other audiovisual works, musical compositions and songs.
- Form VA (Puzzles, greeting cards, jewellery designs, maps, original prints, photographs, posters, sculptures, drawings, architectural plans and blueprints.
- Form SR (Sound recording)
- Form SE (periodicals, newspapers magazines, newsletter, annuals and Journals. Etc.)

Notice of copyright

- Since March 1, 1989 (the date of adherence by the United States to the Berne Convention), use of a notice of copyright (usually the symbol © together with the year of first publication and copyright owner's name) is no longer mandatory, although it is recommended and offers some advantages.
- Works published before January 1, 1978, are governed by the 1909 copyright Act.
- Under that act, if a work was published under the copyright owner's authority without a proper notice of copyright, all copyright protection for that work was permanently lost in the United States.
- With regard to works published between January 1, 1978, and March 1, 1989, omission of a notice was generally excused if the notice was omitted from a smaller number of

copies, registration was made within five years of publication, and a reasonable effort was made to add the notice after discovery of its omission.

Copyright infringement

Section 501 of the Copyright Act provides that anyone who violates any of the exclusive rights of a copyright owner (rights of reproduction, adaptation, distribution, performance, and display), or of the author (as provided in the Visual Artists Rights Act), or who imports copies or phonorecords comes under violation of copyright law, and is liable for direct infringement of the copyright or right of the author.

For example, the following may constitute infringement: playing copyrighted music in a large department store without permission; failing to provide attribution for a painting or other work covered by the Visual Artists Rights Act; and photocopying material from a copyrighted book.

(1) Ownership of Copyright

To prevail in an infringement action, a plaintiff must prove two things: his or her ownership of a valid copyright and copying or some other impermissible invasion by the defendant of one of the exclusive rights afforded to copyright owners.

Ownership is usually more easily established than copying. A party may prove ownership by demonstrating that he or she is the author of the work or that the copyright in the work has been transferred to him or her.

Ownership issues often arise in the context of work-made-for-hire disputes, particularly when a party claims he or she is not an employee and thus a work cannot be owned by an employer or when a party claim there was no written agreement relating to the status of a specially commissioned work and thus, he or she has retained copyright ownership.

If the copyright has been transferred to another, that party is now the owner of the transferred rights and has the right to protect the work by an infringement action.

(2) Copying

Copying may be proven by direct or indirect evidence. Direct evidence exists when the defendant admits copying or an eyewitness can testify that copying took place. Because it is usually very difficult to show direct evidence of copying, most cases rely on indirect or circumstantial evidence of copying, which requires proof of two elements: that the defendant had access to the copyrighted work and that there is substantial similarity between his or her work and that of the defendant.

Infringement does not require an intent to infringe; even innocent infringement gives rise to liability.

(3) Access.

Access is generally interpreted to mean that a party had a reasonable opportunity to perceive or review a work, either directly or indirectly. Access can be inferred if the copyrighted work has been widely disseminated.

Contributory infringement occurs when photo shops reproduce or duplicate photographs bearing a copyright notice, when copy shops reproduce or allow customers to photocopy books and other protected materials, when operators of flea markets or swap meets allow pirated works to be sold, or when an individual sells specially formatted blank cassettes and tape duplicating equipment to pirates with knowledge they are engaging in acts of infringement.

Vicarious infringement typically occurs when one party is responsible for infringement conducted by another when the two parties share a special relationship, such as that of employer-employee. One who is in a position to control the use of copyrighted works by others and has a financial interest in exploitation of the copyrighted works will be liable for vicarious infringement, even if he or she had no knowledge the infringement was occurring.

Section 107 of the Copyright Act provides that the fair use of a copyrighted work for purposes such as criticism, comment, news reporting, teaching, scholarship, or research is not an infringement. Fair use is thus a privilege to use copyrighted material without permission of the copyright owner.

Remedies for infringement in copyrights

Petitioners in infringement actions may seek both monetary and nonmonetary relief. In some instances, the accuser may be more interested in ensuring the infringing activity ceases than in recovering damages. Courts can use a variety of remedies to ensure the copyright owner is adequately protected.

Courts can order the impoundment of infringing copies during the pendency of an infringement action and may order their destruction as part of a final judgment. The plaintiff usually must post a bond so that if no infringement is found, the defendant is recompensed for the pretrial seizure of the goods.

Plaintiffs may recover **compensatory damages** the actual damages suffered as a result of the Infringement and any additional profits received by the defendant arising out of the infringing activities. Actual damages should compensate the plaintiff for lost sales and revenues.

If registration has been secured within three months after publication of a work (or, for unpublished works, before the defendant's infringement), a court may award reasonable attorneys' fees to the prevailing party. Parties may also recover costs (e.g., expert witness fees, court filing fees, photocopy charges).

New developments in copyright law

Developments in technology create new industries and opportunities for reproduction and dissemination of works of authorship. Numerous new issues have arisen relating to the growth of electronic publishing, distribution, and viewing of copyrighted works.

Along with new and expanded markets for works comes the ever-increasing challenge of protecting works from piracy or infringement

Although it is clear that computer programs and automated databases are copyrightable literary works, issues relating to copying computer programs continue to present challenges to the courts. The literal portions of computer programs (source code and object code) are protectable, but the nonliteral portions are often viewed as unprotectable useful articles, scenes a faire, or merged ideas and expressions. Reverse engineering of computer programs to create compatible programs may be acceptable, but creating identical or substantially similar programs may be infringement.

Although some advocate that there should be no restrictions on information on the Internet, others are furiously working to develop encryption and metering devices that can track and monitor electronic use of works and charge for that use.

The protection and infringement of songs and movies is of critical interest to their authors and industries.

The U.S. Copyright Office has clarified its stance on AI-assisted creations. Works that exhibit sufficient human creativity, even if assisted by AI, are eligible for copyright protection. This means that if a human artist's contribution is evident in the final piece—such as by adapting AI-generated output or through creative arrangements—the work can be protected. Conversely, content entirely generated by AI without meaningful human intervention does not qualify for copyright protection.

Internationally, there's a growing concern about AI's impact on creative industries. Prominent artists, including Sir Elton John and Sir Paul McCartney, have advocated for stricter regulations to prevent the unlicensed use of creative works in AI training. They emphasize the need for transparency, control, and fair compensation for creators. The UK government is considering measures to enforce greater transparency on tech companies regarding the data used to train AI models, aiming to balance the interests of both the tech and creative sectors.

These developments underscore the ongoing efforts to adapt copyright laws to the challenges posed by rapidly advancing AI technologies, ensuring that the rights of creators are protected while fostering innovation.

International Copyright Law

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- Along with new and expanded markets for works comes the ever-increasing challenge of protecting works form piracy or infringement.
- Copyright protection for computer programs
- Copyright protection for Automated Databases
- Copyright in the Electronic Age
- The Digital Millennium Copyright Act